

ESTATE PLANNING QUESTIONNAIRE

This questionnaire will solely be used by our office and since your answers go to an attorney, you are assured confidentiality and protected by the attorney-client privilege. Please answer completely and truthfully. If you run out of room filling anything in, please print the page again and attach it. PRINT CLEARLY USING BLUE INK.

Client Information

Type of valid ID and name as it appears on it (please print): _____

Residence Address: _____; Residence County: _____

Mailing Address: _____; Primary Phone Number: _____

Email Address: _____; Date of Birth: _____; Birth State or Country: _____

Are You: ☐ Male ☐ Female; US Citizen: ☐ Yes ☐ No; Widow/Divorced: ☐ Yes ☐ No; Over 63: ☐ Yes ☐ No

If widow/divorce, all former spouse's full names & dates of death/divorce: _____

Approx. income \$ _____; Amt. court ordered financial obligations: _____

Spouse Information

Type of valid ID and name as it appears on it (please print): _____

Residence Address: _____; Residence County: _____

Mailing Address: _____; Primary Phone Number: _____

Email Address: _____; Date of Birth: _____; Birth State or Country: _____

Are You: ☐ Male ☐ Female; US Citizen: ☐ Yes ☐ No; Widow/Divorced: ☐ Yes ☐ No; Over 63: ☐ Yes ☐ No

If widow/divorce, all former spouse's full names & dates of death/divorce: _____

Approx. income \$ _____; Amt. court ordered financial obligations: _____

Trust Information

Have you ever had a trust before: [☐] No [☐] Yes (If Yes, you MUST provide a copy of the most recent trust)

Amendment/Restatement #: _____; Desired name of trust: The _____ Trust

We know why you need a trust, but why do you want one: _____

Assets (For Owner: H = Husband, W = Wife, S/B = Client only or Both H & W)

Cash, Bank Accounts, CD's, Bonds, Retirement, Life Insurance, Annuities, Securities, Timeshares:

Have you had your life insurance policy reviewed in the last year? ☐ Yes ☐ No

Do you have someone that oversees all your investments to ensure you are meeting your goals? ☐ Yes ☐ No

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

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Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Account Type: _____; Approx Value: _____; Institution Name: _____; Owner: _____

Businesses or Hobbies that Make Money:

#1 Business Name: _____; Type: ☐ Sole Proprietor ☐ Partnership ☐ LLC ☐ Corp

Date Started: _____; Entity # _____; State: ____; Tax Election: ☐ Disregarded ☐ Partnership ☐ S ☐ C

of Shares or % Owned: ____; Business Activity: _____; Approx. Value: _____

Do you have a Business Succession Plan ☐ Yes ☐ No; Do you have a Disaster or Disability Plan ☐ Yes ☐ No

#2 Business Name: _____; Type: ☐ Sole Proprietor ☐ Partnership ☐ LLC ☐ Corp

Date Started: _____; Entity # _____; State: ____; Tax Election: ☐ Disregarded ☐ Partnership ☐ S ☐ C

of Shares or % Owned: ____; Business Activity: _____; Approx. Value: _____

Do you have a Business Succession Plan ☐ Yes ☐ No; Do you have a Disaster or Disability Plan ☐ Yes ☐ No

#3 Business Name: _____; Type: ☐ Sole Proprietor ☐ Partnership ☐ LLC ☐ Corp

Date Started: _____; Entity # _____; State: ____; Tax Election: ☐ Disregarded ☐ Partnership ☐ S ☐ C

of Shares or % Owned: ____; Business Activity: _____; Approx. Value: _____

Do you have a Business Succession Plan ☐ Yes ☐ No; Do you have a Disaster or Disability Plan ☐ Yes ☐ No

Money Owed to you:

#1 Who Owes: _____; How Much: _____; Date of Loan: _____; Secured: _____;

Purpose: _____; Does it Need to be Paid Back at Death: _____

#2 Who Owes: _____; How Much: _____; Date of Loan: _____; Secured: _____;

Purpose: _____; Does it Need to be Paid Back at Death: _____

Real Estate:

Do you have a homestead declaration filed to protect equity in your home? ☐ Yes ☐ No

Primary Residence Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

Secondary Residence Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

#1 Rental Property Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

#2 Rental Property Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

#3 Rental Property Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

#4 Rental Property Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

#5 Rental Property Address: _____; Current Value: _____

County: _____; Move In Date: _____; Equity %: ____; Basis: _____; Gain: _____

Other Assets:

Will you inherit anything from a trust (from parents, siblings, etc.)? ☐ Yes ☐ No

Do you own any intellectual property (Patents, Trademarks, Copyrights, etc.)? ☐ Yes ☐ No

Please list any additional assets here: _____

Contact Information (H = Husband, W = Wife, S/B = Client only or Both H & W)

Please list the following for anyone who may be named in your documents as an agent or potential beneficiary of your estate (other than yourselves):

#1 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#2 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#3 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#4 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#5 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#6 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#7 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#8 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

#9 Full Legal Name: _____; Date of Birth: _____; Relationship to you: _____

Related to ☐ S/B ☐ H ☐ W; Mailing Address: _____

Primary Phone Number: _____; Email Address: _____

Other Trust Types

There are many types of trusts that can be created in addition to your standard living trust to accomplish your goals. The following is a brief description of some of the more popular trusts. **Please read each of them and let me know when we meet if would like to explore adding any of these trust to your estate plan.**

Spendthrift Trust. Created for the benefit of an heir who is receiving federal funds for a disability, or because they are unable to manage money and spending prudently. The advantage is that creditors of the beneficiary of the trust usually cannot access nor attach the trust's funds. These trusts are popular tools for aging parents who have worked hard to build their life's fortune but have heirs who are unable to manage money prudently and responsibly.

Asset Protection Trust. Unfortunately, we live in the most litigious society in the world. Everyone wants to get rich off a lawsuit, and if you own a business, nice car, or expensive home, then you have a target on your back. This type of trust allows a trustee to manage the assets for the beneficiary and make distributions in the trustee's discretion. This type of trust can provide protection from a divorcing spouse, lawsuits, bankruptcy, and most creditors.

Charitable Trust. Philanthropy through charitable contributions generates not only goodwill but also has significant income and estate tax benefits for donors. For wealthy individuals, this may translate into hundreds of thousands of dollars in estate and income tax savings. Additionally, you will receive a charitable contribution deduction as of the day on which it is funded, even though you may still be able to control the assets far into the future.

College Savings Trust. This trust may provide income tax advantages if the assets are used for higher education. Such a plan allows the client to remain in control of the assets during the client's lifetime and yet have the assets removed from the client's estate for estate tax purposes. For clients who must have control during life, yet have estate tax concerns, this is something to investigate.

Life Insurance Trust. This trust gives more control over your insurance policies and the money that is paid from them. You can name the trust as a beneficiary of the policy and your heirs as beneficiary of the trust, thus providing immediate cash to pay estate tax or other death expenses, reducing the amount toward your estate taxes, reducing the amount toward your spouse's estate taxes, avoids probate, and prevents issues related to an incapacitated or deceased beneficiary.

Special Needs Trusts. This trust is a critical planning tool designed to secure the financial future of a loved one with a disability without jeopardizing their eligibility for essential government benefits like SSI and Medicaid. Because these public programs often have strict income and asset limits, leaving money directly to a beneficiary can unintentionally disqualify them from coverage. Instead, an SNT holds these assets under the management of a trustee, who directs the funds toward 'supplemental' expenses that government programs do not cover—such as higher quality medical care, education, therapy, or travel. This structure ensures your loved one has the resources to enjoy a higher quality of life while maintaining the safety net of public assistance.

Irrevocable Trusts. Many of the trusts mentioned on this page can set up as part of your revocable living trust, or as a separate irrevocable trust, as well. Irrevocable trusts are key tools to use to reduce the amount you pay in taxes and to protect your assets. The downside to irrevocable trusts is that they can become much more complicated than a revocable living trust, but in many circumstances the benefits far outweigh the complications.

Advanced Health Care Directive (also known as Living Will or Health Care Power of Attorney)

Do you have any objection to using pain medication if you have pain: **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

If I am found unconscious, I wish to be resuscitated: **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

Where do you prefer to die? **Client** ☐ Home ☐ Facility; **Spouse** ☐ Home ☐ Facility

In a hospital, does a specialist have to be consulted before treatment: **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

If yes, name & contact info: _____

Do you want to be: **Client** ☐ Buried ☐ Cremated; **Spouse** ☐ Buried ☐ Cremated

If prepaid, list location, contact info, & contract #: _____

If NO prepaid, what happens to your remains: _____

Do you want to donate organs: **Client** ☐ All ☐ None ☐ Certain; **Spouse** ☐ All ☐ None ☐ Certain

If only certain ones, list which ones: _____

For what purposes: **Client** ☐ Transplant ☐ Research ☐ Stem Cell/Cloning ☐ Education

For what purposes: **Spouse** ☐ Transplant ☐ Research ☐ Stem Cell/Cloning ☐ Education

Would you consider assisted suicide if you were terminally ill: **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

Do you like being outdoors (verses being inside all the time): **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

Do you like spending time with others (verses being alone): **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

List any allergies (medications/anything found in a hospital): _____

Pick one statement that best describes your idea on prolonging life (life support):

I do not want any form of life support for any reason: **Client** ☐ **Spouse** ☐

Prolong my life as long as possible within the limits of accepted medical standards: **Client** ☐ **Spouse** ☐

Prolong my life only if doctors think I will recover relatively quick and complete: **Client** ☐ **Spouse** ☐

Client's Agents Who Can Make Healthcare Decisions:

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Spouse's Agents Who Can Make Healthcare Decisions:

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Financial Power of Attorney Agents

Client's Agents Who Can Have Power Over Your Assets When You Are Incapacitated:

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Spouse's Agents Who Can Have Power Over Your Assets When You Are Incapacitated:

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

When should this take effect: **Client** ☐ Now ☐ Upon Incapacity; **Spouse** ☐ Now ☐ Upon Incapacity

Can Agent change Trust and make gifts: **Client** ☐ Yes ☐ No; **Spouse** ☐ Yes ☐ No

Nomination Of Guardians (ONLY FILL IN IF YOU HAVE MINOR CHILDREN)

GOP - Guardians of the Person (who will have physical custody):

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Guardians of the Estate (who will be in charge of the money – can be the same or different from GOP):

Agent #1 Full Name: _____ Agent #2 Full Name: _____

Agent #3 Full Name: _____ Agent #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Trust Beneficiaries

Trustee & Executor When You Die:

Your trustee is the person that will have to do all of the work when you die. They will be in charge of collecting money owed, paying debts and expenses, and then dividing everything up. Who would you like that to be?

Trustee #1 Full Name: _____ Trustee #2 Full Name: _____

Trustee #3 Full Name: _____ Trustee #4 Full Name: _____

How to Act: ☐ Separate ☐ Jointly; If jointly, then by: ☐ Majority ☐ Individual ☐ Unanimous

Should they be compensated for doing this. If so, how (% of estate, Set \$, Hourly Rate, Etc.) _____

In Trust or Outright:

When you die, you can pass everything to your beneficiaries either in trust or outright. If you choose outright, your beneficiaries will get the assets in their name, and everything is simple. However, if your beneficiaries are sued, go through a divorce, file bankruptcy, or have creditors after them, then the assets could be taken in any of those situations. If instead you choose in trust, then they can still be in charge of the assets (or not – up to you) and as long as the assets stay in the trust they are protected from all of these situations.

Who Will Inherit Your Assets:

#1 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#2 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#3 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#4 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#5 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#6 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

#7 Full Legal Name: _____; US Citizen: ☐ Yes ☐ No; % or \$ Amount: _____

If he/she Dies, then to: ☐ his/her kids **OR** ☐ _____; What if he/she/they die, then to: _____

Is he/she receiving government financial benefits/disability: ☐ Yes ☐ No; How to Inherit: ☐ In Trust ☐ Outright

Pets:

What do you want to happen to your pets: _____

Specific Gifts

#1 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

#2 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

#3 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

#4 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

#5 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

#6 Gift: _____; Beneficiary Name: _____

Distribute at the death of: ☐ H ☐ W ☐ Both; Distribute: ☐ In Trust ☐ Outright ☐ Augment Existing SST

If unable to receive gift: ☐ to Issue ☐ Lapse ☐ Someone Else - _____

Disinheritance

If a scenario plays out where all of your listed beneficiaries die before or at the same time as you, then we need a catch all provision to make sure the assets do not go to the state. Do you prefer to keep the money in the family, or give it to charity:

Client ☐ Family ☐ Charity; **Spouse** ☐ Family ☐ Charity

If Family, is there anyone at all in your blood line that you want to make sure never gets any of your assets?

Full Legal Name: _____; Relation to You: _____; Reason: _____

Full Legal Name: _____; Relation to You: _____; Reason: _____

Full Legal Name: _____; Relation to You: _____; Reason: _____

Full Legal Name: _____; Relation to You: _____; Reason: _____

If Chairty, what charity or cause: _____